

24STCV18995 24STCV18995

County: los-angeles

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Department: 515

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Case Number: 24STCV18995 Hearing Date: September 21, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Petition to Confirm

Minor's Compromise.

The hearing on the Petition is continued to a date to be set at the hearing.

BACKGROUND

Plaintiff Bianca Surmeh Salvatori (Petitioner) and Plaintiff Elle Alessandra Salvatori (Claimant), a minor appearing through Petitioner as guardian ad litem, filed this action against S-Oaks Blvd Apartments Owner, LLC and Mill Creek RESIDENTIAL TRUST, LLC (collectively, "Defendants"), alleging that Defendants failed to maintain the apartment Plaintiffs rented from them in habitable condition.

The causes of action are: (1) Breach of Implied Warranty of Habitability; (2) Negligence; (3) Negligent Hiring, Retention, and Supervision; (4) Breach of Contract; (5) Breach of the Covenant of Quiet Enjoyment; (6) Nuisance; (7) Violation of Business and Professions Code Section 17200; (8) Intentional Infliction of Emotional Distress; (9) Negligent Infliction of Emotional Distress; (10) Fraudulent Misrepresentation; and (11) Negligent Misrepresentation.

Petitioner filed a Petition for Expedited Approval of Compromise of Claim or Action for Minor.

LEGAL STANDARD

A guardian ad litem appearing for a minor has power to compromise the minor's claim in a pending action "with the approval of the court in which the action or proceeding is pending." (Code Civ. Proc., § 372, subd. (a)(3).) In approving a minor's compromise, the court's "primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.) A petition for that approval "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.) Where each condition listed in rule 7.950.5(a) exists, the petitioner may satisfy those disclosure requirements by submitting a completed form MC-350EX. (Cal. Rules of Court, rule 7.950.5(a).)

ANALYSIS

I. Settlement Amount

Petitioner asks the Court to approve a gross settlement of \$2,750 for Claimant, to be paid without deduction for medical expenses, attorney fees, or costs. (Pet., items 11a, 17.) Petitioner represents having made a careful and diligent inquiry into the facts and circumstances of the incident, the responsibility for it, and the nature and extent of Claimant's injuries. (Pet., item 10.) Petitioner identified no injury requiring care and no medical expenses. (Pet., items 7-8, 13a.)

Here, the Court finds that \$2,750 is a reasonable compromise of Claimant's claims. The amount is typical of settlements in the many similar cases before this Court involving minors who lived in uninhabitable conditions, suffered no physical injury, and required no medical treatment.

The Court also finds the apportionment reasonable. Under the Settlement Agreement and Release (Settlement Agreement), Defendants must pay \$27,500 to Plaintiffs and waive any balance remaining on Plaintiffs' tenant account. (Pet., Ex. 11c, at p. 3.) Petitioner proposes that \$24,750 go to Petitioner and \$2,750 go to Claimant. (Pet., item 12b(3).) Plaintiffs allege that Petitioner signed the lease and that Claimant was four years old when the tenancy began. (Compl., ¶¶ 8, 11.) Thus, the claims tied to the lease and the tenant account belong to Petitioner. Therefore, Claimant's 10% share of the cash payment reflects the difference between the two Plaintiffs' claims.

II. Attorney Compensation

Where an attorney assisted the petitioner, the petition must disclose the fees the attorney has received or expects to receive and the identity of the person who paid or is expected to pay them. (Cal. Rules of Court, rule 7.951(4)-(5).) The petition must also disclose “[t]he terms of any agreement between the petitioner and the attorney.” (Cal. Rules of Court, rule 7.951(6).)

Here, Petitioner disclosed that counsel has received or expects to receive \$9,625 from Petitioner, and requested no attorney fees from Claimant’s share. (Pet., items 17c, 18b.) Those entries satisfy rule 7.951(4) and (5). However, Petitioner did not disclose the terms of the fee agreement, as rule 7.951(6) separately requires.

III. Disposition of Proceeds

Petitioner requests that Claimant’s \$2,750 be paid to a parent of Claimant under Probate Code sections 3401 and 3402, without bond. (Pet., item 19b(4).) Where the balance does not exceed \$5,000, the Court may order that it “be paid or delivered to a parent of the minor, without bond, upon the terms and under the conditions specified in Article 1 (commencing with Section 3400) of Chapter 2.” (Prob. Code, § 3611, subd. (e).) Under Probate Code section 3401, money belonging to a minor who has no guardian of the estate “may be paid or delivered to a parent of the minor entitled to the custody of the minor to be held in trust for the minor until the minor reaches majority if the requirements of subdivision (c) are satisfied.” (Prob. Code, § 3401, subd. (a).)

Subdivision (c) provides, “This section applies only if both of the following requirements are satisfied: [¶] (1) The total estate of the minor, including the money and other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value. [¶] (2) The parent to whom the money or other property is to be paid or delivered gives the person making the payment or delivery written assurance, verified by the oath of such parent, that the total estate of the minor, including the money or other property to be paid or delivered to the parent, does not exceed five thousand dollars (\$5,000) in value.” (Prob. Code, § 3401, subd. (c).)

Here, Petitioner meets the requirements of Probate Code section 3401. First, Petitioner is Claimant’s parent. (Application for Appointment of

Guardian Ad Litem, filed Aug. 15, 2024, items 1a, 8b.) Second, Petitioner checked item 19b(4), which states that the "[v]alue of minor's entire estate, including the money or property to be delivered, must not exceed \$5,000," and verified the Petition under penalty of perjury. (Pet., item 19b(4); Pet., at p. 7.) Because Petitioner verified the \$2,750 to be delivered against that limit, the Court concludes that this satisfies subdivision (c).

However, Petitioner did not attach Attachment 19b(4), which must state the name and address of the parent and the money to be delivered. Nor did Petitioner state, in item 8b of the proposed order, the amount or method of disbursement. (Proposed Order, item 8b.)

IV. Other Corrections

Petitioner identified Petitioner's relationship to Claimant in item 1 only as guardian ad litem and did not check the box for parent. (Pet., item 1.)

Petitioner also checked item 4a, which states that Claimant's claim is not the subject of a pending action. (Pet., item 4.) However, Claimant is a plaintiff in this action. Thus, item 4b applies to Claimant's claim.

Accordingly, the Court continues the hearing on the Petition to a date to be set at the hearing. No later than 9 court days before the continued hearing, Petitioner must file an amended Petition, or a supplemental verified declaration, that (1) discloses the terms of Petitioner's fee agreement with counsel; (2) attaches Attachment 19b(4); and (3) corrects items 1 and 4. Petitioner must also lodge a revised proposed order that states the method of disbursement and names the parent to whom the balance is to be paid.

CONCLUSION

The hearing on the Petition is continued to a date to be set at the hearing.